

Ross

v.

Ross

(Case No. 199141)

The matter is set for further proceedings on child custody recommended counseling and domestic violence restraining order. Mr. Ross has also filed a motion for child support, spousal support and attorney fees, which he served, via mail, on April 22, 2022. Ms. Ross has yet to file a responsive pleading or the necessary income and expense declaration.

The Court notes the proposed support calculation (Xspouse calculation) identifies Mr. Ross earning \$14,000 monthly with a net adjusted income of \$9,541.00; however, the income and expense declaration puts his income at zero. Assuming this is correct, the Court requests an amended proposed calculation be brought to the hearing on June 6, 2022.

As to the domestic violence restraining order and issues of custody and visitation, the Court will seek a status on all issues. The parties should come prepared to address whether a Family Code, section 3044 advisement has occurred and whether a hearing on the request for restraint should occur prior to deciding issues of custody and visitation.